

ELIZABETH II



1966 CHAPTER xxiv

An Act to authorise the Corporation of London to extend the river wall and street works authorised by the Blackfriars Bridgehead Improvements Act 1960 and to acquire lands compulsorily; and for other purposes.
[9th August 1966]

WHEREAS—

(1) By the Blackfriars Bridgehead Improvements Act 1960 1960 c. xlviii. the Corporation of London were authorised to carry out certain street improvements for the relief of traffic congestion at the junction of the northern approach to Blackfriars Bridge, the Victoria Embankment, New Bridge Street and Queen Victoria Street in the city of London and in connection therewith to construct a river wall:

(2) It is estimated that the works so authorised by that Act will shortly be completed:

(3) In order to avoid delay in the completion of works necessary for linking the said improvements with an improved southern traffic route through the city it is expedient to confer on the Corporation further powers for the construction and maintenance of additional works, comprising street works and a river wall in extension (and as to part for the alteration) of the works authorised by the said Act of 1960, and for those purposes to purchase and use the lands described in this Act:

(4) It is expedient that the other provisions contained in this Act be enacted:

(5) The objects of this Act cannot be attained without the authority of Parliament:

(6) Estimates have been prepared by the Corporation for and in connection with the following purposes:—

	£
The construction of the river wall authorised by this Act and works connected therewith 	880,000
The construction of the street works authorised by this Act and works connected therewith 	920,000

(7) A plan and sections showing the lines and levels of the works authorised by this Act and showing the lands required, or which may be taken, for the purposes or under the powers of this Act, and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands, were duly deposited in the office of the Clerk of the Parliaments, and in the Private Bill Office, House of Commons, with the clerk of the Greater London Council and with the town clerk of the city of London, which plan, sections and book of reference are in this Act referred to respectively as the deposited plan, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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| Short title. | 1. This Act may be cited as the Blackfriars Bridgehead Improvements Act 1966. |
| Division of Act into Parts. | 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Lands.
Part III.—Works.
Part IV.—General. |
| Interpretation. | 3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction— |
| 1960 c. xlviii. | “ Act of 1960 ” means the Blackfriars Bridgehead Improvements Act 1960;
“ city ” means the city of London; |

“ Corporation ” means the mayor and commonalty and citizens of the city acting by the common council;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force;

“ existing ” means existing at the commencement of this Act;

“ limits of deviation ” means the limits of deviation for the works authorised by this Act shown on the deposited plan;

“ port authority ” means the Port of London Authority;

“ river ” means the river Thames and, where the context so admits, includes the bed, banks and foreshore thereof;

“ river wall ” means Work No. 1A authorised by this Act together with the works subsidiary thereto so authorised;

“ street ” includes a highway, a public bridge and any road, lane, footway, square, court, alley or passage, whether a thoroughfare or not, and notwithstanding the absence of houses;

“ street works ” means Works Nos. 2A, 3A and 4A authorised by this Act together with the works subsidiary thereto so authorised;

“ town clerk ” and “ engineer ” mean the town clerk and engineer of the city and include any persons duly appointed to discharge temporarily the respective duties of those officers.

(2) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length.

4.—(1) Subject to the provisions of this Act, Part I of the Compulsory Purchase Act 1965 (except sections 4 and 27 and paragraph 3 (3) of Schedule 3 thereof) shall apply for the purposes of the acquisition of land under this Act as it applies in relation to a compulsory purchase order under the Acquisition of Land (Authorisation Procedure) Act 1946 and as if this Act was such an order.

Application of Part I of Compulsory Purchase Act 1965.
1965 c. 56.
1946 c. 49.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 as so applied, for the words “ fourteen days ” there shall be substituted the words “ three months ”.

PART I
—cont.

Application of
provisions of
Blackfriars
Bridgehead
Improvements
Act 1960.

5.—(1) The provisions of the Act of 1960 specified in column (2) of the schedule to this Act shall apply and have effect for the purposes of the Part of this Act specified in relation thereto in column (1) of that schedule as if those provisions were in terms re-enacted in this Act subject to the modifications set out in column (3) of the schedule.

(2) The provisions of the Act of 1960 so applied shall for the purposes of this Act be construed as if originally enacted in this Act.

PART II

LANDS

Power to
acquire lands.

6.—(1) Subject to the provisions of this Act, the Corporation may enter upon, take and use such of the lands in the city delineated on the deposited plan and described in the deposited book of reference as may be required for the purpose of the works authorised by this Act and the improvement and development of frontages and of lands abutting on, or adjacent to, any street (including the provision of space for the erection of houses and buildings adjoining or near to the said works) and for other purposes of this Act, or for any of the aforesaid purposes.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the 31st December, 1969.

Use of shores,
etc., for river
wall.

7. The Corporation may—

(a) for the purposes of constructing or maintaining the river wall, use so much of the bed, banks and foreshore of the river as may be required for such purposes and as lies within the limits of deviation; and

(b) for the purposes of executing and placing temporary works and conveniences in connection with the river wall, occupy and use temporarily so much of the said bed, banks and foreshore as may be required for those purposes and as lies within the limits of deviation.

Power to
acquire ease-
ments only.

8.—(1) The Corporation may, instead of acquiring any land which they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements and rights in or over the land as they may require for the purpose of doing anything in connection with the works authorised by this Act.

(2) Accordingly the Corporation may give notice to treat in respect of any such easements or rights describing the nature thereof and the provisions of Part I of the Compulsory Purchase Act 1965 as applied by this Act shall have effect in relation to the acquisition of such easements or rights as if they were lands within the meaning of those provisions.

(3) Where the Corporation have acquired an easement or right only in or over any land under this section—

PART II
—cont.

- (a) they shall not be required, or (except by agreement or during the execution of the works authorised by this Act) entitled, to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this Act had not been passed.

9. In determining any question of disputed compensation or purchase money in respect of land, or easements or rights in or over land, acquired under this Act, the tribunal by whom the compensation is to be assessed shall not take into account— Disregard of recent improvements and interests.

- (a) any improvement or alteration made, or building erected, after the 4th December, 1965; or
- (b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made, erected or created with a view to obtaining or increasing the compensation or purchase money.

10.—(1) All private rights of way over any land which may be acquired compulsorily under this Act shall, as from the acquisition of the land, whether compulsorily or by agreement, be extinguished. Extinction of private rights of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under, and in accordance with, the Land Compensation Act 1961. 1961 c. 33.

PART III WORKS

11.—(1) Subject to the provisions of this Act, the Corporation may, within the city, make and maintain in the lines or situations shown on the deposited plan and according to the levels shown on the deposited sections the works referred to in this section hereafter described, together with all necessary and proper works and conveniences connected therewith or incidental thereto:— Power to construct works.

Work No. 1A A new river wall on the foreshore of the river on its northern side in extension of the river wall (Work No. 1) authorised by the Act of 1960, commencing by a junction with the said Work No. 1 at the stop wall at the termination thereof and terminating at the western side of the stairs known as Trig Lane Stairs providing access from Trig Lane to the river:

PART III
—cont.

Work No. 2A A new road in extension of the road and underpass (Work No. 2) authorised by the Act of 1960 commencing by a junction with the said Work No. 2 at the termination thereof and terminating in Upper Thames Street at a point 53 yards westward of the junction of that street with Stew Lane:

Work No. 3A A narrowing on the eastern side of the road (Work No. 3) authorised by the Act of 1960 between the point of commencement of the said road and the junction of that road with Queen Victoria Street:

Work No. 4A A new road and overpass commencing by a junction with the road and underpass (Work No. 2) authorised by the Act of 1960 at the termination thereof and terminating in Queen Victoria Street at a point 18 yards westward of the junction of that street with Bennet's Hill.

(2) The Corporation may by means of the river wall enclose and reclaim so much of the river as is situate on the landward side of the river wall, and may hold and use or dispose of the land so reclaimed and vested in them under this Act.

(3) In the construction of the overpass (part of Work No. 4A) authorised by this Act the Corporation shall erect on each side a good and sufficient fence.

Limits of
deviation.

12. In the construction of the works authorised by this Act the Corporation may deviate laterally from the lines or situations thereof, as shown on the deposited plan, to any extent not exceeding the limits of deviation, and from the levels thereof, as shown on the deposited sections, to any extent upwards or downwards.

Power to stop
up certain
streets.

13.—(1) Subject to the provisions of this Act, the Corporation may stop up under this section any street, or any part of a street, within the limits of deviation other than—

(a) any part of Queen Victoria Street, Bennet's Hill, High Timber Street and Stew Lane; and

(b) so much of the following streets as is not required for the construction of the works authorised by this Act:—

Upper Thames Street;
Trig Lane;
Broken Wharf; and
Brooks Wharf.

(2) No portion of any street shall be stopped up under the powers of this section until the Corporation are in possession of all lands on both sides of that portion, except so far as the owners, lessees and occupiers of those lands may otherwise agree.

(3) The link road (Work No. 4) authorised by the Act of 1960 shall not be stopped up under the powers of this section until the new road (Work No. 2A) and the new road and overpass (Work No. 4A) authorised by this Act have been completed and opened for public use.

PART III
—cont.

(4) Nothing in this section shall prejudice or affect the powers of section 15 (Subsidiary street works) of this Act with respect to the diversion or alteration of existing streets for the purpose of connecting them with any of the street works or of crossing over or under the same, and the stopping up of any part of any such existing street rendered unnecessary by reason of the exercise of the powers of this Act.

14. On the stopping up (otherwise than temporarily) of a street, or any part of a street, under the powers of this Act all rights of way over the same and other rights in respect thereof shall be extinguished and the site and soil thereof shall vest in the Corporation so far as such site and soil shall not be already vested in the Corporation, subject to the payment of compensation, if any, by the Corporation to any person in respect of the value, if any, of his interest in the site and soil of any part of a street vested in the Corporation by virtue of this section, such compensation to be determined in case of dispute under, and in accordance with, the provisions of the Land Compensation Act 1961 c. 33. 1961, but in assessing such compensation no regard shall be had to any enhancement in the value of any interest in such part due to such stopping up.

Vesting of
sites of
streets
stopped up.

15.—(1) Subject to the provisions of this Act the Corporation may, for the purposes of, or in connection with, the street works, (in addition to the works described or referred to in any other provision of this Act) execute or do any of the following works or things within the limits of deviation (that is to say):—

Subsidiary
street works.

- (a) make junctions and communications (including the provision of steps and ramps for the use of persons on foot) with any existing street (whether or not dedicated to public use or maintainable at public expense) which may be intersected or interfered with by, or be contiguous to, those works or any of them;
- (b) make diversions, widenings or alterations of the line or level of any such existing street for the purpose of connecting the same with those works, or any of them, or of crossing under or over the same or otherwise;

PART III
—cont.

- (c) stop up any part of any such existing street which may be rendered unnecessary by reason of the exercise of the powers of this Act;
- (d) construct and provide carriageways, footways, vaults, cellars, arches, sewers, drains, subways, sunken or other ornamental gardens, and other works and conveniences;
- (e) remove, alter, divert, stop up or interfere with any drain, sewer, channel or watercourse or any pipe, wire or apparatus; provided that the Corporation shall provide a proper substitute before interrupting the flow of sewage in any drain or sewer, or of water in any channel or watercourse;
- (f) raise or sink, or otherwise alter the position of, any steps, areas, cellars, cellar flaps, pavement lights, gratings, boundary walls, railings, fences, windows, doors, sewers, drains, watercourses, pipes, spouts or wires belonging to any house or building and remove all other obstructions; provided that the Corporation shall, in so doing, cause as little detriment and inconvenience as the circumstances will admit, and shall make reasonable compensation to any person who suffers damage by reason of the carrying out of any such alterations, such compensation to be determined in case of dispute under, and in accordance with, the Land Compensation Act 1961;
- (g) execute any works and do any things necessary for the protection of any adjoining land or buildings;
- (h) provide alternative means of access to premises the existing access to which may be stopped up, or interfered with, by, or as a result of, the execution of the street works.

1961 c. 33.

(2) The Corporation may, on any lands abutting on the street works and outside the limits of deviation, execute or do, by agreement with the owners and occupiers of the said lands, any of the works or things referred to in paragraphs (f), (g) and (h) of subsection (1) of this section and any other works necessary or convenient for the purpose of preserving the amenities of the said lands.

(3) Any sewers, drains and works (hereafter in this subsection called “apparatus”) rendered unnecessary by the substitution of other apparatus therefor shall vest in the Corporation and the substituted apparatus shall be under the same jurisdiction, care, management and direction as the existing apparatus for which it is substituted.

16.—(1) Subject to the provisions of this Act, the Corporation may, for the purpose of preventing interference with any engineering, building or other operations or of preventing damage to works resulting from any such operations, pump any water found by them in the construction and maintenance of the works authorised by this Act, and may use for the discharge of any such water the river or any available stream or watercourse or any sewer or drain and for that purpose may, within the limits of deviation, lay down, take up and alter conduits, pipes and other works and make any convenient connections with the river or any such stream, watercourse, sewer or drain:

PART III
—cont.

Power to
pump water
and use
sewers for
removing
water.

Provided that—

- (a) the Corporation shall not under the powers of this section discharge any water into any sewer or drain vested in, or under the control of, the Greater London Council except with the consent of that council (which shall not be unreasonably withheld) and subject to such terms and conditions (including the taking of steps to remove so far as may be reasonably practicable from water so discharged any gravel, soil, silt or other solid substance or matter in suspension) as that council may reasonably impose; and
- (b) the Corporation shall not under the powers of this section make any opening into any such sewer or drain except in accordance with plans reasonably approved by and under the superintendence (if given) of that council.

(2) Any difference arising between the Corporation and the Greater London Council under this section shall be settled by arbitration.

PART IV GENERAL

17. For the protection of the port authority and river users the following provisions shall, unless otherwise agreed in writing between the Corporation and the port authority, apply and have effect:—

For protection
of port
authority and
river users.

(1) In this section—

“ the river ” does not include any part of the river Thames or of the bed, banks and shores thereof which will be situate on the landward side of the river wall after the completion thereof;

“ river works ” means any part of the river wall which is situate in, on, over or under the river and the removal, alteration, diversion or stopping up of any outfall to the river so situate of any drain, sewer, channel or watercourse within the limits of deviation:

PART IV
—cont.

1920 c. clxxiii.

- (2) Notwithstanding anything in this Act or shown on the deposited plan or the deposited sections or contained in the deposited book of reference, the Corporation shall not construct the river wall so that any part of the parapet thereof is situate south of the line marked on the deposited plan and thereon denoted "Line of River Wall (Work No. 1A)":
- (3) (a) Before commencing to execute any river works under the powers of this Act the Corporation shall submit to the port authority plans, sections and particulars of the river works for their reasonable approval (which approval may be given subject to such reasonable requirements for protecting navigation of the river as the port authority may make) and the river works shall be deemed to be works upon the bed or shores of the river commenced or executed under the direction, or with the licence, consent or permission, of the port authority within the meaning of section 244 (Certain works to be approved by the Board of Trade) of the Port of London (Consolidation) Act 1920;
- (b) If the port authority do not within 28 days of the submission to them of any plans, sections or particulars pursuant to this paragraph intimate to the Corporation their approval or disapproval thereof they shall be deemed to have approved the same:
- (4) (a) All river works shall when commenced be proceeded with and completed as soon as practicable and the Corporation shall, upon completion of any part of any permanent river works, remove as soon as practicable any temporary works, and materials for temporary works, which may have been erected or placed in, on, over or under the river for the purpose of, or in connection with, that part of those works;
- (b) River works shall be constructed and maintained and, in the case of temporary works, removed to the reasonable satisfaction of the chief engineer of the port authority for the time being and, in the construction and maintenance thereof, traffic on the river shall not be interfered with more than may be reasonably necessary:
- (5) The Corporation shall allow an authorised representative of the port authority to inspect and survey all or any of the river works and any works constructed in connection therewith on lands immediately adjacent to the river by the Corporation under the powers of this Act while in course of construction or maintenance and shall give all reasonable facilities for so doing:

- (6) (a) The Corporation shall not (except in so far as may be necessary or unavoidable in the construction of the works authorised by this Act) take from, or deposit in, or allow to fall into, the river any gravel, soil, silt or other material without the previous consent of the port authority signified in writing under the hand of the secretary of the port authority for the time being;
- (b) The Corporation shall so far as is reasonably practicable secure that any gravel, soil, silt or other material necessarily or unavoidably removed from the river by them shall not be allowed to fall or be washed into the river:
- (7) (a) Any pile stump or other obstruction which becomes exposed in consequence of, and during the construction of, the river works (other than a pile stump or other obstruction situate on the site of any permanent works) shall be removed from the river by the Corporation or, if after notice to the port authority it is agreed, or in default of agreement determined by arbitration, that it is not reasonably practicable to remove it, shall be cut off by the Corporation at a level below the bed of the river to the satisfaction of the port authority;
- (b) If the Corporation fail to remove or cut off any such pile stump or other obstruction after receipt of a notice in writing from the port authority, the port authority may themselves carry out such removal, charging the Corporation with the expense of so doing, and the Corporation shall repay to the port authority all expenses so incurred:
- (8) The port authority shall not be liable for any damage or injury to any temporary work in, on, over or under the river authorised by this Act resulting from the dredging operations of the port authority or the carrying out by them in the execution of their statutory powers and duties of any operations in the river or works for the improvement or maintenance thereof, provided that they take reasonable care to avoid any such damage or injury:
- (9) The owners and masters of vessels shall not be liable to make good any damage which may be caused to any temporary works or plant placed by the Corporation in the river under the powers of this Act except to the extent that any such damage arises from gross neglect on the part of such owners or masters or their servants or agents:
- (10) Any compensation or consideration payable to the port authority by the Corporation in respect of the

PART IV
—cont.

1920 c. cixxiii.

lands enclosed, reclaimed, held, taken or used, and of all permanent or temporary works placed in the river, under the powers of this Act shall be assessed in accordance with the provisions of section 254 (Consideration for licence to be previously approved) of the Port of London (Consolidation) Act 1920:

- (11) If in the opinion of the port authority it is necessary or desirable, by reason of the execution of any works in the river under the powers of this Act, to alter, remove or resite any existing moorings and they give notice of their intention to do so and take into account any observations which may, within 28 days of such notice, or such other period as may be reasonable in the circumstances of the case and specified in the notice, be made to them by the Corporation with respect thereto, the Corporation shall pay to the port authority the costs reasonably incurred by them in so altering, removing or resiting any such moorings:

1964 c. xxxvi.

- (12) Nothing in this Act shall affect the operation of the provisions of sections 226 to 239 of the Port of London (Consolidation) Act, 1920, relating to pollution or the corresponding provisions of Part II of the Port of London Act 1964:

Provided that this paragraph shall not apply in relation to the alteration or diversion of the existing outfall of any drain, sewer, channel or watercourse by the Corporation under the powers of this Act.

- (13) Any difference arising between the Corporation and the port authority under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection
of Greater
London
Council.

18. For the protection of the Greater London Council (hereinafter called "the council"), the following provisions shall, unless otherwise agreed in writing between the Corporation and the council, apply and have effect:—

- (1) In this section unless the subject or context otherwise requires—

"council's engineer" means the director of public health engineering of the council or other officer duly authorised to exercise the functions of that officer;

"sewer" means the Purfleet Wharf sewer and the outlet to Puddle Dock, the Wheatsheaf Wharf sewer, Paul's Pier Wharf sewer and the Paul's Pier outlet

sewer to the river Thames, and Queenhithe sewer and its Trig Wharf, Broken Wharf and Stew Lane branches and other sewers of the council, or any such sewers;

“ specified works ” means so much of the river wall (Work No. 1A) authorised by this Act or the street works as will or may pass over, under or by the side of or interfere with any sewer:

- (2) The Corporation shall not commence the construction of any of the specified works until they shall have given to the council 28 days' notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans as described in paragraph (3) of this section (in this section referred to as “ the said plans ”) and until the council shall have signified their approval of the same (unless the council do not signify their approval, disapproval or other directions within 28 days after service of the said plans):
- (3) The plans to be submitted to the council for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the position and manner in which, and the level at which, the specified works are proposed to be constructed, and shall describe the position as shown on the plans of the council of all sewers of the council within the limits of deviation of the specified works (for which purpose the council shall allow the Corporation access to those plans in order to enable the Corporation to obtain the requisite information) and shall comprise detailed drawings of every alteration which the Corporation may propose to make in any such sewer:
- (4) The Corporation shall comply with and conform to all reasonable orders, directions and regulations of the council in the execution of the specified works and shall provide new, altered or substituted works in such manner as the council shall reasonably require for the proper protection of, and for preventing injury or impediment to, any sewer by reason of the specified works, and shall indemnify the council against all expenses to be occasioned thereby:
- (5) All such new, altered or substituted works shall, where reasonably so required by the council, be done by, or under the direction, superintendence and control of, the council's engineer at the cost in all respects of the Corporation, and all costs, charges and expenses which the council may reasonably incur by reason of such

PART IV
—cont.

works, whether in the execution of works, the preparation or examination of plans or designs, superintendence or otherwise, shall be paid to the council by the Corporation:

- (6) When any such new, altered or substituted works, or any protective works connected therewith, shall be completed by, or at the cost of, the Corporation under the provisions of this section, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the council as any sewers now or hereafter may be:
- (7) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested in the council in relation to sewers but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (8) The council may require the Corporation in constructing the specified works to make any reasonable deviation within the limits of deviation of such works from the line or levels shown upon the said plans for the purpose of avoiding injury or risk of injury to the sewers of the council and the Corporation shall in constructing such works deviate from the line or level thereof in accordance with any such reasonable requirement of the council:
- (9) The council's engineer may from time to time enter upon and inspect any works of the Corporation constructed under this Act under, or in the neighbourhood of, any street or road, or part of a street or road, in or under which he has reason to believe that there are any sewers and any works which under the provisions of this section are required to be constructed in accordance with plans, sections and specifications approved by the council:
- (10) The council may require such modifications to be made in the said plans as may be reasonably necessary to secure the Greater London sewerage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers:
- (11) The Corporation shall be liable to make good all injury or damage caused by, or resulting from, the construction of the specified works to any sewers or to any drains or works vested in the council:
- (12) The approval by the council of any plans, or the superintendence by them of any work, under the provisions of this section shall not exonerate the Corporation from any liability or affect any claim for damages under this section or otherwise:

(13) If the Corporation, in the construction of any of the specified works, alter, damage, or in any way interfere with, any sewer referred to in paragraph (1) of this section, the Corporation shall—

PART IV
—cont.

(a) from time to time pay to the council any additional cost to which the council may be put in the maintenance, management or renewal of any new, altered or substituted sewer which may be necessary in consequence of the construction of the specified works; and

(b) give to the council full, free and uninterrupted access at all times to any such new, altered or substituted sewer and every reasonable facility for the inspection, maintenance, alteration and repair thereof.

19. For the protection of the London Transport Board (in this section referred to as “the board”), the following provisions shall, unless otherwise agreed in writing between the Corporation and the board, apply and have effect:—

For
protection of
London
Transport
Board.

(1) In this section—

“the underground railway” means the District Railway of the board and so much of the lands, works or premises belonging to, or occupied by, the board for the purposes of the said railway as is within the limits of deviation or within 50 feet of any of the street works;

“the specified works” means so much of any of the works authorised by this Act as may be within a distance of 50 feet measured in any direction from the underground railway;

“the board’s engineer” means an engineer to be appointed by the board;

“construction” includes renewal and, for the purposes of paragraphs (4) and (8) of this section, includes works of maintenance or repair involving disturbance of any structure or the soil or subsoil;

“plans” includes sections, drawings and particulars:

(2) The Corporation shall not, under the powers of this Act, acquire compulsorily any lands or property of the board, but they may, in accordance with the provisions of section 8 (Power to acquire easements only) of this Act, acquire compulsorily such easements and rights in lands or property of the board as they may reasonably require for the purposes of the specified works:

PART IV
—cont.

- (3) The Corporation shall not without the consent of the board (such consent not to be unreasonably withheld), in the construction of the specified works within a distance of 10 feet from the underground railway, deviate downwards towards the said railway below the levels shown on the deposited sections or below the existing surface level of any street over the said railway, whichever is the lower:
- (4) The Corporation shall, before commencing the construction of any of the specified works, furnish to the board sufficient plans thereof for the reasonable approval of the board's engineer and shall not commence the construction thereof until such plans shall have been approved by the board's engineer or, in case of difference between the engineer and the board's engineer, settled by arbitration:
- Provided that if within 28 days after the plans have been furnished to the board, the board's engineer shall not have intimated his approval, or disapproval thereof, and in case of disapproval the grounds thereof, he shall be deemed to have approved them:
- (5) The Corporation shall, except in cases of emergency (when they shall give such notice as is practicable), give to the board's engineer 28 days' notice of their intention to commence the construction of any of the specified works:
- (6) The construction of the specified works shall, when commenced, be carried out in accordance with the plans approved or deemed to be approved or settled as aforesaid:
- (7) The Corporation shall at all times afford reasonable facilities to the board's engineer for access to the specified works during their construction and shall supply him with all such information as he may reasonably require with regard to such works or the method of construction thereof:
- (8) The Corporation shall be responsible for and make good to the board all costs, charges, damages and expenses which may be occasioned to, or reasonably incurred by, the board—

(a) in respect of damage to the underground railway by reason of the construction of the specified works or the failure thereof; or

(b) by reason of any act or omission of the Corporation or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the specified works;

and the Corporation shall effectively indemnify and hold harmless the board from and against all claims and demands arising out of, or in connection with, the construction of the specified works, or any such act or omission as aforesaid, and the fact that any work or thing may have been done in accordance with plans approved by the board's engineer shall not excuse the Corporation from any liability under the provisions of this section:

Provided that the board shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

- (9) Any difference arising between the Corporation or the engineer and the board or the board's engineer under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

20. For the protection of certain statutory undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the statutory undertakers concerned, apply and have effect:—

- (1) In this section, unless the subject or context otherwise requires—

“Act of 1950” means the Public Utilities Street Works Act 1950;

“apparatus” means—

(a) electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to, or maintained by, the London Electricity Board;

(b) mains, pipes, valves, syphons, stopcocks or other works or apparatus belonging to, or maintained by, the North Thames Gas Board;

(c) mains, pipes, valves, hydrants, stopcocks or other works or apparatus belonging to, or maintained by, the Metropolitan Water Board; or

(d) hydraulic mains, pipes, valves or other apparatus belonging to the London Hydraulic Power Company;

and includes any works constructed for the lodging therein of apparatus;

PART IV
—cont.

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ position ” includes depth;

“ statutory undertakers ” means—

the London Electricity Board;

the North Thames Gas Board;

the Metropolitan Water Board; and

the London Hydraulic Power Company;

or any of them, and in relation to any apparatus or property means the statutory undertakers to whom the apparatus or property belongs, or by whom the apparatus is maintained, and in relation to the supply of electricity, gas or water means the statutory undertakers by whom the supply is provided:

- (2) Notwithstanding anything in this Act or shown on the deposited plan or contained in the deposited book of reference, the Corporation shall not, under the powers of this Act, acquire any apparatus compulsorily:
- (3) Subject to the provisions of this section, the provisions of the code in Part II of the Act of 1950 shall apply and have effect in relation to the works authorised by this Act (other than any works executed under section 16 (Power to pump water and use sewers for removing water) of this Act) as if those works were included in section 21 (1) (a) of the Act of 1950 and, without prejudice to the powers of the Corporation to require the execution of undertakers' works within the meaning of that Act, subsection (1) (e) of section 15 (Subsidiary street works) of this Act shall not apply to any apparatus to which the said section 21 of the Act of 1950 applies:

Provided that for the purposes of such application the provisions of the Act of 1950 shall have effect—

(a) so as to impose on the Corporation an obligation, before commencing any of the said works, to give notice to the statutory undertakers concerned under paragraph 2 of Schedule 4 to the Act of 1950 together with plans, sections and particulars of the works to be commenced; and

(b) as if accordingly the words between parentheses in paragraph 3 of the said schedule relating to a road alteration were omitted:

- (4) Where, in consequence of the construction of any subway under the powers of section 15 (Subsidiary street works) of this Act, the position of any apparatus is required to be altered so as to pass under that subway,

the Corporation shall repay to the statutory undertakers any additional expenses reasonably incurred by the statutory undertakers in consequence of the alteration of the position of the apparatus in breaking open or reinstating any street, or in inspecting, maintaining, repairing, removing or renewing the apparatus and, in the case of the North Thames Gas Board, any expenses reasonably incurred by that board in providing, installing, inspecting or maintaining any syphons the provision of which is necessary in consequence of the alteration of position of the apparatus:

- (5) Where a street in which any apparatus is situated has been permanently stopped up or diverted by the Corporation under the powers of section 13 (Power to stop up certain streets) or of section 15 (Subsidiary street works) of this Act, the statutory undertakers shall, notwithstanding such stopping up or diversion, continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up or diversion has ceased to be a street as they would have if it had remained a street, or the statutory undertakers may, and if reasonably required by the Corporation shall—

(a) remove the apparatus and re-lay or replace it in such other position as the statutory undertakers may reasonably determine; or

(b) provide and lay or place in such other position as aforesaid other apparatus in place of the existing apparatus:

- (6) The Corporation shall repay to the statutory undertakers the reasonable expenses incurred by the statutory undertakers in, or in connection with, the carrying out of such works as are referred to in sub-paragraphs (a) and (b) of the last foregoing paragraph (whether or not the Corporation have required those works to be carried out), including expenses so incurred in cutting off any apparatus from any other apparatus and in doing any work rendered necessary in consequence of carrying out the said works:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which impose limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Corporation under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection, for the words "specified as so necessary in a specification of the

PART IV
—cont.

works settled under Part I of the Fourth Schedule to this Act”, there were substituted the words “ agreed or settled by arbitration under section 20 (For protection of certain statutory undertakers) of the Blackfriars Bridgehead Improvements Act 1966 ”:

- (7) Subject to the provisions of paragraph (5) of this section, in exercising the powers of the said section 15 of this Act the Corporation shall cause as little inconvenience in relation to access by the statutory undertakers to apparatus as the circumstances of the case will admit:
- (8) Notwithstanding anything in section 16 (Power to pump water and use sewers for removing water) of this Act, no use shall be made by the Corporation in the construction of the works authorised by this Act of pumping or other like modes of removing water except where reasonably necessary or in the case of emergency or unforeseen accident or for the purpose of removing rainwater or other small amounts of water, and the provisions of section 26 of the Act of 1950 (which deals with undertakers’ works which are likely to affect other undertakers’ apparatus) shall apply to, and in relation to, the laying down, taking up or altering of conduits, pipes or other works under the said section 16 as if executed for purposes other than road purposes:
- (9) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street, or part of a street, or of any subway, under the powers of section 29 (Power to stop up ways temporarily) of the Act of 1960 as applied for the purposes of Part III of this Act shall not prejudice or affect any right of the statutory undertakers—
 - (a) to maintain, operate, inspect, repair, renew or remove any apparatus which at the time of the stopping up or diversion is in the carriageway, footway or subway, or part thereof, as the case may be; or
 - (b) for the purpose of such maintenance, operation, inspection, repair, renewal or removal, to enter upon, break open or carry out works in that carriageway, footway or subway, or part thereof, as the case may be:
- (10) The Corporation shall so far as is reasonably practicable so exercise the powers conferred by section 30 (Power to prevent access to or from street works) of the Act of 1960 as applied for the purposes of Part III of this Act as not to obstruct or render less convenient the access to any apparatus:
- (11) If by reason or in consequence of the execution by the Corporation of the works authorised by this Act any

damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the statutory undertakers, or any interruption in the supply of electricity, gas or water by the statutory undertakers, shall be caused, the Corporation shall bear and pay the cost reasonably incurred by the statutory undertakers in making good such damage and shall—

(a) make reasonable compensation to the statutory undertakers for any loss sustained by them; and

(b) indemnify the statutory undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against, or recovered from, or incurred by, the statutory undertakers;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Corporation with respect to any damage or interruption which may be attributable to the act, neglect or default of the statutory undertakers or their contractors or workmen;

(ii) the statutory undertakers shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

- (12) The expenses of all repairs or renewals of any apparatus which may be rendered necessary by reason or in consequence of the construction of any of the works authorised by this Act, or any subsidence resulting from those works, shall be borne by the Corporation and paid by them to the statutory undertakers:
- (13) The Corporation shall bear and pay any cost reasonably incurred by the statutory undertakers in the reasonable employment of watchmen and inspectors during the execution under the powers of this Act of any work which will or may interfere with, or affect, any apparatus:
- (14) Any difference arising between the Corporation and the statutory undertakers under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration:
- (15) The provisions of this section shall have effect notwithstanding anything in the Act of 1950.

PART IV
—cont.

For further
protection of
London
Electricity
Board.

21. For the further protection of the London Electricity Board the following provisions shall, unless otherwise agreed in writing between the Corporation and that board, apply and have effect:—

(1) In this section unless the context otherwise requires—

“ apparatus ” has the same meaning as in paragraph (1) of section 20 (For protection of certain statutory undertakers) of this Act in relation to apparatus of the board;

“ board ” means the London Electricity Board;

“ position ” includes depth;

“ transformer ” means the electricity transformer and apparatus situated in the lands shown on the deposited plan and described in the deposited book of reference and therein numbered 20 in the city:

(2) Notwithstanding anything in this Act or shown on the deposited plan the board may retain the transformer in the lands numbered 20 aforesaid until reasonably required by the Corporation to remove it, or to alter the position thereof, and so long as the transformer is so retained in the said lands the Corporation shall afford to the board all such rights of access as may reasonably be required to enable the board to maintain, operate, inspect, repair and renew it:

(3) If reasonably so required by the board the Corporation shall afford to the board on terms not less favourable than those on which at the passing of this Act the board held and maintained the transformer in the land numbered 20 aforesaid, all such facilities, including access, as may be reasonably required to enable the board to resite the transformer or to place reasonably comparable alternative apparatus and maintain the same on land for the time being belonging to the Corporation, and if such facilities are not granted before the transformer is removed the Corporation shall, if reasonably so required by the board, afford all such temporary facilities as may be so required for the placing and maintenance of apparatus necessary to enable the board in the meantime to maintain the supply of electricity afforded by the transformer:

(4) The provisions of paragraph (6) of the said section 20 shall apply in relation to the works referred to in paragraphs (2) and (3) of this section as they apply in relation to any works mentioned in paragraph (5) of the said section 20:

- (5) Any difference arising between the Corporation and the board under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

PART IV
—cont.

22.—(1) Unless otherwise agreed in writing between the Corporation and the Postmaster General and, except as otherwise provided in subsection (5) of this section—

For protection
of Postmaster
General.

- (a) the provisions of the Public Utilities Street Works Act 1950 shall apply and have effect in relation to the works authorised by this Act (other than any works executed under section 16 (Power to pump water and use sewers for removing water) of this Act) as if those works were mentioned in section 21 (1) (a) of that Act and, without prejudice to the powers of the Corporation to require the execution of undertakers' works within the meaning of that Act, subsection (1) (e) of section 15 (Subsidiary street works) of this Act shall not apply to any apparatus to which section 21 of the said Act of 1950 applies:

Provided that for the purposes of such application the provisions of the said Act of 1950 shall have effect—

- (i) so as to impose on the Corporation an obligation, before commencing any of the said works, to give notice to the Postmaster General under paragraph 2 of Schedule 4 to that Act together with plans, sections and particulars of the works to be commenced; and
- (ii) as if accordingly the words between parentheses in paragraph 3 of the said schedule relating to a road alteration were omitted;
- (b) the provisions of section 26 of the said Act of 1950 (which deals with undertakers' works which are likely to affect other undertakers' apparatus) shall apply to and in relation to the laying down, taking up or altering of conduits, pipes or other works under the said section 16 as if executed for purposes other than road purposes.

(2) Where, in pursuance of the powers conferred by section 13 (Power to stop up certain streets) of this Act or of subsection (1) (b) or (c) of the said section 15, any street or part of a street is stopped up or diverted the following provisions of this subsection shall, unless otherwise agreed in writing between the Corporation and the Postmaster General, have effect in relation to so much of any telegraphic line belonging to, or used by, the Postmaster General as is under, in, upon, over, along or across any land which by

PART IV
—cont.

reason of the stopping up or diversion ceases to be a street (in this subsection referred to as “the affected line”), that is to say:—

- (a) The power of the Postmaster General to remove the affected line shall be exercisable notwithstanding the stopping up or diversion of the street, or part of the street, so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the date of the sending of the notice referred to in subsection (3) of this section unless, before the expiration of that period, the Postmaster General has given notice to the Corporation of his intention to remove the affected line or that part thereof (as the case may be):
- (b) The Postmaster General may by notice in that behalf to the Corporation abandon the affected line, or any part thereof, and shall be deemed, as respects the affected line, or any part thereof, to have abandoned it at the expiration of the said period of three months unless, before the expiration of that period, he has removed it or given notice of his intention to remove it:
- (c) The Postmaster General shall be entitled to recover from the Corporation the expense of providing in substitution for the affected line, and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line, a telegraphic line in such other place as he may require:
- (d) Where under paragraph (b) of this subsection the Postmaster General has abandoned the whole or any part of the affected line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1962 shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(3) As soon as practicable after the whole or part of a street has been stopped up or diverted in pursuance of the powers referred to in subsection (2) of this section the Corporation shall send to the Postmaster General a notice informing him of the stopping up or diversion.

(4) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street, or part of a street, or of any subway, under the powers of section 29 (Power to stop up ways temporarily) of the Act of 1960 as applied for the purposes of Part III of this Act shall not prejudice or affect any right of the Postmaster General—

- (a) to maintain, inspect, repair, renew or remove any telegraphic line belonging to, or used by him, which at

the time of the stopping up or diversion is under, in, upon, over, along or across that carriageway, footway or subway, or part thereof, as the case may be; or

- (b) for the purpose of such maintenance, inspection, repair, renewal or removal, to enter upon, break open or carry out works in that carriageway, footway or subway, or part thereof, as the case may be.

(5) For the protection of the existing deep level underground works of the Postmaster General (hereinafter called “the deep level works”), the following provisions shall, unless otherwise agreed in writing between the Postmaster General and the Corporation, apply and have effect in place of any provision in the Public Utilities Street Works Act 1950 which might otherwise apply in relation to the deep level works:—

- (a) As soon as practicable after the commencement of this Act the Corporation shall consult the Postmaster General with the object of ensuring that the works authorised by this Act shall not cause damage to, or interfere with, the deep level works;
- (b) Before commencing the construction of any part of the works authorised by this Act which will or may pass under or over, or within 50 feet of, the deep level works, the Corporation shall give to the Postmaster General notice of their intention to do so, accompanied by plans, sections and specifications of the work to be constructed, and shall not commence the construction thereof until such plans have been approved by the engineer of the Postmaster General or, in case of difference, between the engineer and the said engineer of the Postmaster General, settled by arbitration:

Provided that if within 28 days after the plans, sections and specifications have been given to the Postmaster General, the engineer of the Postmaster General has not intimated his approval or disapproval thereof, and in case of disapproval the grounds thereof, he shall be deemed to have approved them;

- (c) The work to be constructed by the Corporation shall be constructed only in accordance with the plans, sections and specifications so approved or settled.

(6) In this section “telegraphic line” has the same meaning as in the Telegraph Act 1878.

1878 c. 76.

23. Nothing in this Act shall exempt the Corporation from any of the provisions of the Thames River (Prevention of Floods) Saving for Thames River (Prevention of Floods) Acts.

PART IV
—*cont.*

Acts, 1879 to 1962, or diminish or alter or in any way affect the powers, rights, duties, responsibilities or obligations of any person or body under any of the provisions of those Acts.

Saving for
town and
country
planning.
1962 c. 38.

24. The provisions of the Town and Country Planning Act 1962, and any restrictions or powers thereby imposed or conferred in relation to land, shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

Arbitration.
1965 c. 56.

25. Where under this Act any difference (other than a difference to which the provisions of Part I of the Compulsory Purchase Act 1965 apply) is to be referred to, or settled by, arbitration, then, unless otherwise provided, such difference shall be referred to, and settled by, a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

26. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, obtaining and passing of this Act shall be paid by the Corporation out of the general rate of the city.

SCHEDULE

Section 5.

PROVISIONS OF BLACKFRIARS BRIDGEHEAD IMPROVEMENTS
ACT 1960 APPLIED

1960 c. xlvihi.

Part of this Act (1)	Provision applied (2)	Modifications (3)
Part II	Section 7 (Correction of errors in deposited plan and book of reference)	In subsection (1), the words "or any additional judge" shall be omitted. In subsection (3) for the words "London County" there shall be substituted the words "Greater London".
	Section 9 (Power to use sub-soil of streets)	—
	Section 16 (Grant of easements by persons under disability)	For the words "the Lands Clauses Acts" there shall be substituted the words "Part I of the Compulsory Purchase Act 1965"; for the words "those Acts" there shall be substituted the words "that Part"; and for the words "said Acts" there shall be substituted the words "said Part I".
	Section 18 (Power to reinstate owners or occupiers of property)	—
Part III	Section 22 (Power to make works in river Thames)	In subsection (1) for the words "the existing river wall" there shall be substituted the words "the existing stop wall (part of Work No. 1) authorised by the Act of 1960 and any other existing river wall within the limits of deviation" and the words from "and to the north of" to the end of the subsection shall be omitted.
	Section 24 (Sewers etc. to be removed arched over or filled up)	—

SCH.
—cont.

1845 c. 18

1965 c. 56.

Part of this Act (1)	Provision applied (2)	Modifications (3)
Part III —continued	Section 25 (Underpinning of buildings)	In paragraph (5) for the words “twelve months” there shall be substituted the words “five years”. In paragraph (6) for the words “section 68 of the Lands Clauses Consolidation Act 1845” there shall be substituted the words “section 10 of the Compulsory Purchase Act 1965”. In paragraph (7) for the words “the Lands Clauses Acts” there shall be substituted the words “Part I of the Compulsory Purchase Act 1965”.
	Section 26 (Power to construct bridges etc. and to execute temporary works on railways)	—
	Section 27 (Vesting and disposal of materials)	—
	Section 29 (Power to stop up ways temporarily)	Subsection (3) shall be omitted.
	Section 30 (Power to prevent access to or from street works)	In subsection (1) for the words “Nos. 2 to 9” there shall be substituted the words “Nos. 2A, 3A and 4A”.
Part IV	Section 37 (Lights on temporary works)	For the references in each of sections 37, 38 and 39 to high-water mark of ordinary spring tides there shall be substituted references to the level of mean high-water springs.
	Section 38 (Abatement of works abandoned or decayed)	
	Section 39 (Damage to or destruction of works)	

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Blackfriars Bridgehead Improvements Act 1966

CHAPTER xxiv

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